



OREGON YOUTH AUTHORITY
Policy Statement
Part III – Youth Services (Community)



Subject:

Placement/Return of Youth on Interstate Compact for Juveniles

Section – Policy Number:

C: Case Planning and Review – 4.0

Supersedes:

III-C-4.0 (06/22)
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II-G-1.0 (03/06)

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Review/Revision:

None

**Related
Standards
and
References:**

- [ORS 417.010](#) through ORS 417.080 (Interstate Compact for Juveniles)
- [OAR 416-115](#) (Interstate Compact)
- [Interstate Commission for Juveniles \(ICJ\) Rules](#)
- [Interstate Commission for Juveniles](#)
- [OYA policy](#): I-A-11.0 Assessment, MDT, and Case Planning
I-E-2.3 Request for Youth Information and Records
III-D-1.3 JPPO Contact Standards
III-D-2.1 Youth Transports and Escorts within the Community
- JJIS policy: [Interstate Compact on Juveniles - ICJ](#)
- [OYA form](#): YA 2228 (Travel Expense Sheet)
- Interstate Commission for Juveniles ([ICJ](#)) [forms](#)

**Related
Procedures:**

- [DO III-C-4.0](#) Interstate Compact for Juveniles

Policy Owner:

Community Services Assistant Director

Approved:

Mike Tessean, Director

I. PURPOSE:

This policy provides guidelines for OYA staff when conducting the authorized transfer of supervision and care, and the return of juveniles from one state to another as governed by the Interstate Compact for Juveniles (ICJ).

II. POLICY DEFINITIONS:

Abscorder: A juvenile on probation or parole who hides, conceals, or absents so that they are unavailable for the legal process or authorized control.

Accused delinquent: A person charged with an offense, if committed by an adult would be a criminal offense.

Demanding state: The state seeking the return of a juvenile with or without delinquency charges.

Deputy compact administrator (DCA): An Oregon Youth Authority employee who serves as the general coordinator of activities, rules and policies developed to carry out the terms and provisions of the ICJ.

Escapee: A juvenile who has made an unauthorized flight from in-custody status or a facility to which the juvenile has been committed by a lawful authority.

Escort: The staff responsible for supervising and accompanying the youth during an ICJ transport.

Holding state: The state where the juvenile is located.

Home state: The state where the legal guardian or custodial agency is located.

ICJ commissioner: A person appointed by the OYA director to serve as the general coordinator of activities, rules and policies developed to carry out the terms and provisions of the ICJ for Oregon. The ICJ commissioner or designee is the voting representative for the state of Oregon with the Interstate Commission for Juveniles, and may be the deputy compact administrator.

Interstate Compact for Juveniles (ICJ): The agreement pertaining to the legally authorized transfer of supervision and care, as well as the return of juveniles from one state to another, which has been adopted by all member states that have enacted legislation in substantially the same language. The agreement does not include or provide for the transfer of court jurisdiction from one state to another.

Juvenile: Any person defined as a juvenile in any member state or by the rules of the Interstate Commission.

Oregon ICJ Office: Oregon Youth Authority employees assigned to ICJ, including the deputy compact administrator and an ICJ support staff, who carry out activities and duties in compliance with OYA policy, Oregon Administrative Rules (OARs), and ICJ laws, rules, and procedures.

Receiving state: A state to which a youth is sent for supervision under provisions of the Compact.

Referral packet: The initial documentation, including ICJ forms, necessary to request ICJ services.

Sending state: A state which has sent or is in the process of sending a juvenile to another state for supervision under the provisions of the Compact.

Youth: A person in the legal and physical custody of OYA, either in an OYA facility or placed in the community under supervision.

III. POLICY:

OYA has identified diversity, equity and inclusion as an agency priority and initiative with a goal to build a respectful, diverse, equitable, and inclusive environment for youth and staff that is free from harassment, discrimination and bias. OYA values racial diversity and seeks equitable outcomes and experiences for all juveniles served by the ICJ and all parties in the ICJ. Members of the ICJ strive to ensure all ICJ youth and families are safe, supported and treated equitably.

As a member of the ICJ, the State of Oregon through OYA cooperates with other member states to promote, develop, and facilitate a uniform standard that provides for the welfare and protection of juveniles, victims, and the public.

This policy provides general standards for staff applying ICJ to youth subject to the terms of the ICJ. Specifically, this policy provides a course of action when requesting supervision services from another state, providing supervision to a youth from another state, the return of absconders and escapees, and special circumstances that pertain to executing the ICJ.

IV. GENERAL STANDARDS:

A. Interstate Compact for Juveniles (ICJ) in Oregon

1. ICJ applies to all juveniles subject to some form of supervision designated by the juvenile's home state, and are in one of the following categories:
 - a) A juvenile charged with an offense that if committed by an adult would or would not be a criminal offense;
 - b) A juvenile adjudicated on an offense that would or would not be a criminal offense if committed by an adult; or
 - c) A juvenile subject to the jurisdiction of their home state and under some form of supervision but has not been charged or adjudicated as a status offender or delinquent.
2. The DCA must provide interpretation of the ICJ and coordinate all referrals or requests to:
 - a) Permit out-of-state supervision of a youth when eligible for parole or probation;
 - b) Monitor ICJ compliance on transfer of supervision cases;
 - c) Coordinate the return of absconders, escapees, accused delinquent, and runaways to their home state;
 - d) Return juveniles to their home state when the ICJ placement has failed; and

- e) Manage travel permits for juveniles from Oregon or sending states.
- 3. All communication between states on ICJ cases, whether verbal or written, must be between the respective ICJ offices.
 - a) OYA staff must have prior approval from the Oregon ICJ Office to communicate with out-of-state ICJ jurisdictions for a specific purpose.
 - b) Staff must follow the rules and policies of the receiving state regarding release of confidential information. Any questions concerning the release of confidential information may be directed to the ICJ commissioner.
- 4. All transfers under the ICJ are transfers of supervision only. Jurisdiction remains with the sending state.
- B. Standards for OYA staff
 - 1. Sending a youth to another state
 - a) A youth's juvenile parole/probation officer (JPPO) may initiate a request for supervision to another state by completing an ICJ referral packet as outlined in [ICJ rules](#) (Rule 4-102: Sending and Receiving Referrals; and Rule 4-103: Transfer of Supervision Procedures for Juvenile Sex Offenders).
 - b) The JPPO must email a completed referral packet to the Oregon ICJ Office.
 - c) A juvenile with a sexual offense or a paroled juvenile cannot relocate to the receiving state until the sending state has sent their home evaluation, and the transfer case has been approved, unless there are extenuating circumstances, such as family emergency, houselessness, extreme safety concerns or other situations reviewed and approved by the Oregon ICJ Office.
 - d) Only the receiving state's ICJ office has the authority to accept or deny supervision of a juvenile by that state.
 - e) The Oregon ICJ Office must notify the JPPO when the referral has been accepted or denied by the receiving state. A copy of the completed home evaluation must be forwarded to the JPPO with the receiving state's reporting requirements (ICJ Form V) attached.
 - f) The JPPO must notify the Oregon ICJ Office at least five working days before a youth departs to a receiving state.

2. Receiving a youth from another state

The Oregon ICJ Office must forward requests for home evaluations from a sending state to the appropriate OYA field supervisor for assignment.

- a) OYA staff will complete home evaluations for juveniles on parole using [ICJ Form VIII](#) (Home Evaluation Report).
- b) The field supervisor must ensure the home evaluation is completed within 30 days of receiving the request. The completed evaluation must be emailed to the Oregon ICJ Office.
- c) The sending state is financially responsible for treatment services it requires if those services cannot be paid for by other means.
 - (1) The JPPO must work with the youth's family to pursue the following alternative resources:
 - (a) Funding from third party insurance (i.e., private insurance);
 - (b) Additional resources from the youth's family; or
 - (c) Medicaid (e.g., Oregon Health Plan).
 - (2) The JPPO must report in the youth's [ICJ Form VIII](#) (Home Evaluation Report) the lack of available resources. The Oregon ICJ Office must contact the sending state to establish funding.
- d) If ICJ supervision is approved, the field supervisor must designate a JPPO responsible for supervising the juvenile. The JPPO must be identified in the home evaluation report.

3. Supervision

- a) JPPOs must supervise ICJ youth in the following manner:
 - (1) The JPPO must follow OYA policy regarding case planning development and frequency of contact with their assigned youth. (See related OYA policies I-A-11.0 Assessment, MDT, and Case Planning; III-D-1.3 JPPO Contact Standards.)
 - (2) The youth's identified risk and treatment needs must drive the youth's level of supervision. The JPPO must have a minimum of monthly face-to-face contact with the youth, as indicated in OYA policy III-D-1.3 JPPO Contact Standards.

- (3) The JPPO must complete the [ICJ Form IX](#) (Quarterly Progress Report) at least 15 days before the quarterly progress date and e-mail it to the Oregon ICJ Office. The ICJ Office will ensure the reports are distributed to the sending state no later than every 90 days.
- (4) The JPPO must report violations immediately upon returning to the workplace by completing the ICJ Form IX (Violation Report) that requires the sending state to make a decision about supervision status. Details of the violation must be included in the report with any supporting documents.
- (5) The JPPO must report an abscond from supervision to the sending state using the ICJ Form IX (Absconder Report) immediately upon returning to the workplace after discovery of the absconding. The circumstances of abscond and any attempts to locate the youth must be included along with any supporting documents.
- (6) Field supervisors must perform quarterly audits of all ICJ transfer cases.
 - (a) Staff must document the youth's criminal history and important contact information in JJIS.
 - (b) JJIS policy and OYA field procedure COM III-C-4.0 describe the location and type of information to be entered into JJIS.

- b) The sending state has sole authority to discharge/terminate supervision.

The JPPO may submit a request to the Oregon ICJ Office for the sending state to release the youth from supervision.

4. Travel Permits

- a) The JPPO must use the [ICJ Form VII](#) (Out-of-State Travel Permit and Agreement to Return) to document travel permits. The form must be signed by the youth, JPPO, and field supervisor. **Travel may not exceed 90 days.**
- b) The JPPO must ensure instructions for the youth to maintain contact with the JPPO are on the ICJ Form VII if the planned travel exceeds 30 calendar days.
- c) Signed travel permits must be emailed to the Oregon ICJ Office for review and processing.

- d) Travel permits must be submitted at least **five business days** prior to the travel date to allow adequate time for the authorization by the sending and receiving states. Exceptions may be made for emergency situations only and must be thoroughly documented.
- e) The Oregon ICJ Office must send an email to the JPPO and field supervisor confirming that the travel permit has been sent to the receiving state.
- f) Travel permits may be issued under the following circumstances:
 - (1) Vacation/Visit Only: Travel to another state in excess of 24 consecutive hours (e.g., visit with relatives, vacation, school, work).
 - (2) Visit for Testing Residence: Any youth on probation may relocate to another state prior to the submission and approval of the ICJ request for transfer of supervision. These permits will only be approved on a case-by-case basis.

The ICJ referral packet must be submitted to the Oregon ICJ Office within one week after the youth's departure to the receiving state.

5. Sex Offense Cases

- a) Juveniles with sex offense charges must not transfer to another state before the receiving state has notified the Oregon ICJ Office that supervision has been approved.
- b) Staff must notify youth with sex offense charges (including those traveling to another state on a travel permit) that they must abide by the registration laws in the receiving state. Youth who fail to register are subject to the laws of the receiving state.
- c) Staff must ensure referrals for supervision on OYA youth with sex offense charges clearly delineate treatment services and monitoring conditions.
- d) Staff must follow statutorily-mandated progress reporting requirements of the sending state that exceed the frequency of quarterly progress reports.

6. Warrants

- a) Parole and probation staff who are notified that an OYA youth has been placed in custody outside of Oregon pursuant to a warrant or detainer must notify the Oregon ICJ

Office the next business day.

- b) Upon receiving notification of an OYA youth's custody status in another state, the Oregon ICJ Office must notify the holding state the same business day to determine if the detainer will be honored.
- c) The Oregon ICJ Office must coordinate with the holding state to ensure the return of the youth within five business days of the youth's due process rights being met.
- d) Holding states are not reimbursed for costs related to the detention of youth unless the home/demanding state's ICJ office has not demonstrated a good faith effort to affect the return of the youth within five working days.

7. Return of escaped/absconded youth to Oregon

- a) When an escaped or absconded youth is apprehended in another state, the Oregon ICJ Office must contact the appropriate field supervisor.
- b) The Oregon ICJ Office is responsible for coordinating the return of the youth with the holding state including arranging travel for the youth and escorting staff.

The Oregon ICJ Office must provide a travel itinerary for the JPPO or designee executing the transport.

- c) The Oregon ICJ Office, in consultation with the field supervisor, must determine if the youth is to be escorted during the transport and the needed level of security.
- d) Commercial airline return
 - (1) Staff must follow OYA policy III-D-2.1 (Youth Transports and Escorts within the Community) section IV.F. (Secure Commercial Airline Transports).
 - (2) Staff must carry the following types of youth identification in a temporary secure transport file to assist in identifying the youth during air travel:
 - (a) Photo identification if available;
 - (b) OYA JJIS Face Sheet with photo;
 - (c) ICJ Form III (Consent for Voluntary Return of Out-of-state Juvenile), approved requisition forms, or equivalent adult waiver of extradition; and

- (d) Any other available identification documents (e.g., birth certificate, social security card, school identification).
- (3) Transporting staff may not reschedule any flights or modify the youth's transport/travel plans without prior approval from the Oregon ICJ Office.
- e) If there are any problems or issues during the return transport, staff are required to contact the Oregon ICJ Office immediately for assistance.
- f) If a youth absconds during a transport, the transporting staff must immediately notify:
 - (1) Airport security or local law enforcement;
 - (2) ICJ commissioner; and
 - (3) Field supervisor.
- g) OYA is responsible for transportation costs incurred in returning the youth.
 - (1) Travel expenses (e.g., lodging and airfare) are reimbursed through the Oregon ICJ Office. Meal per diem for the staff and subsequently the juvenile will be paid according to current collective bargaining agreements and state travel policy.
 - (2) Staff must submit a YA 2228 b (Travel Expense Sheet) for expense reimbursement.
 - (3) Wages and overtime are the responsibility of OYA and must be approved by the field supervisor according to current collective bargaining agreements and state policy.

8. Custody Transfer

Holding states are responsible for transporting the youth to the nearest local airport or other means of transportation as arranged by the ICJ offices.

- a) OYA staff who are transporting youth must maintain custody and supervision of the youth from arrival to departure.
- b) The Oregon ICJ Office must ensure the following information is provided to the other state's ICJ office and Oregon's transport staff:
 - (1) A description of the youth's behavior while in custody;

- (2) A description of any mental health issues, particularly suicidal behavior, concerning the youth while in the holding state's care;
 - (3) A description of any health concerns; and
 - (4) A description of any perceived risks to the safety of the escort or youth during the transport.
- c) OYA staff assuming custody of a youth in a holding state must show the staff member's official OYA photo identification to the holding state escort prior to assuming custody.

9. Release of Information

- a) Staff must follow OYA policy I-E-2.3 Request for Youth Information and Records when releasing information requested on youth under ICJ supervision by OYA in Oregon.
- b) Staff must follow the same procedures for youth under ICJ supervision as they do for youth in the legal custody of OYA when sharing information about youth during the performance of their duties (e.g., school notification).

V. GENERAL OYA PROCEDURE REQUIRED: YES

The general procedure addresses staff roles regarding:

- A. Requests for supervision outside of Oregon;
- B. Travel permits for vacation/visit, visit testing residence permits; and
- C. Requests for supervision in Oregon.

VI. LOCAL OPERATING PROTOCOL REQUIRED: NO